

VIRGINIA OWNER-BUILDER PERMIT KIT

Qualify for the exemption · File the permit · Pass the inspections

Project Address: _____

County / City: _____

Owner-Builder: _____

Permit Application Date: _____

Every Virginia statute, regulation, and requirement in this kit
is cited on the page it appears on — verified August 2026.

BUILD YOUR HOUSE

build-your-house.com

First Edition — 2026

How to Use This Kit

Five working documents that take a Virginia owner-builder from "am I allowed to do this?" to a certificate of occupancy.

Virginia is one of the cleaner states to build your own home in: the owner-builder exemption is a single sentence of statute, and the building code is **one statewide edition** — the Uniform Statewide Building Code — that no county or city may vary (Code of Virginia § 36-98). What trips owner-builders up is that the USBC is **enforced locally**: every county, city, and town runs its own building department (§ 36-105), each with its own forms, fees, and portal. This kit separates the two — what the Commonwealth requires, fixed and cited here, and what your locality requires, which you fill in.

WHAT IS IN THE KIT

The five documents

	Document	What it does for you
VA.1	Owner-Builder Exemption Walkthrough	Whether you qualify, what you sign, and the strings the statute attaches. Read this first.
VA.2	Permit Application Checklist	What to gather and verify before you file — zoning, septic and well, driveway, erosion control, energy code, the lien agent line.
VA.3	Inspection Sequence	The statewide minimum inspections in order, what each one checks, and fields for dates and results.
VA.4	Where to File Directory	Your locality's offices and portals, the state agencies, and how to find each one.
VA.5	Forms & Documents Index	Each document you will meet: what it is, when, and from where.

HOW TO USE IT

- **Start with VA.1.** If you do not qualify for the exemption, nothing else in the kit matters yet.
- **Fill in VA.4 before you need it.** Ten minutes of phone calls early saves a week of chasing later.
- **Work VA.2 with a pen** and do not file until the boxes are checked. Incomplete applications are the most common cause of delay.
- **Keep VA.3 on the job** and record every inspection date and result as it happens.

VIRGINIA IN SIX FACTS

The headline facts — each unpacked in the document it belongs to

Fact	What Virginia says	Authority
The exemption	You may build (or supervise building) one primary residence, owned by you and for your own use, in any 24-month period — no contractor license required. You claim it with a written statement supported by an affidavit at the permit counter.	§ 54.1-1101(A)(7); § 54.1-1111
The code	The 2021 USBC (2021 I-Codes, 2020 NEC) has governed since January 18, 2024, and has been the only permitted edition since January 18, 2025. The next edition is not expected before 2027.	13VAC5-63; dhcd.virginia.gov/codes
The lien agent	Every one/two-family permit carries a mechanics' lien agent line — designated at your option , else the permit says "None Designated." Designating one forces lien claimants to give notice within 30 days or lose lien coverage for earlier work.	§ 36-98.01; § 43-4.01
The septic gate	On an unsewered lot, the VDH sewage approval comes first: the building official may refuse the building permit until state functional-design approval is in hand.	USBC § 103.5; 12VAC5-610-240
The driveway	Most Virginia roads outside cities are state-maintained. A new entrance onto one requires a VDOT land use permit before construction .	24VAC30-73-60(A)
The blower door	A blower-door test is mandatory for every new dwelling — there is no visual-inspection option — with a maximum leakage of 5 ACH50 in Climate Zone 4.	13VAC5-63-264

How these facts were checked — and what this is not

Every Virginia claim here was read against its primary source — the Code of Virginia and Virginia Administrative Code at law.lis.virginia.gov, plus the responsible agencies' own pages — in August 2026, and is cited where it appears; where localities differ the kit says so and gives the verification step. This is a process reference, not legal advice, and does not replace your building department or the USBC itself. Virginia's code changed editions as recently as 2024 — confirm anything you rely on.